

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

C.P.L.A.No.3260 of 2024

Against the Judgment dated 26.04.2024
passed by the Federal Service Tribunal,
Lahore in Appeal No.186 (L) / 2021

Government of Pakistan through its Secretary
Pakistan Railway Islamabad and others. ...Petitioners

Versus

Shahkar Qudos HashmiRespondent

For the Petitioners: Mrs. Shireen Imran, ASC

For the Respondent: N.R.

Date of Hearing: 28.01.2026

Judgment

Muhammad Ali Mazhar, J: This Civil Petition for leave to appeal is directed against the Judgment dated 26.04.2024 passed by the learned Federal Service Tribunal, Camp at Lahore (**FST**) in Service Appeal No.186-L/2021.

2. The short and snappy facts are that the respondent was appointed to the post of “Assistant Chemist and Metallurgist” in the Basic Pay Scale (**BPS**) 17 for the period of two years in terms of contract letter dated 14.10.2009. Afterwards, he was selected and recommended by the Federal Public Service Commission (**FPSC**) for appointment on regular basis against the same post

vide notification dated 22.09.2011. The sticking point in the case is that the respondent was assigned additional charge of higher post of CC&M (BS-18) vide letter dated 02.03.2012 and he continued to hold such higher office/position without any break or interval more or less for eight years till his regular promotion to the said post with effect from 17.08.2020. He filed the departmental appeal for the consideration of antedated promotion but his appeal was rejected on 26.05.2021. When all's said and done, he filed the service appeal before the FST which was allowed by means of impugned judgment with certain directions.

3. The learned counsel for the petitioner argued that the FST, has passed the impugned Judgment in contravention of well settled principles of law. It was further contended that the promotion on look after charge and promotion on regular base are two distinct features and mere assumption of higher post as a look after charge does not create any right of promotion on regular basis. The learned counsel further argued that the respondent became eligible for promotion to the post of CC&M in BPS-18 after completion of 05 years' service in BPS-17 under the APT Rules. It was further averred that FST also failed to consider the question of limitation.

4. Heard the arguments. It is well-settled that each case has its own peculiarities. Obviously, the facts of each and every case may not be on one and the same footing or complementing but vary and distinguishable from case to case. In effect, the respondent in this case entreated before the FST for actualization of his eight years' lengthened service rendered by him in BPS-18 in the guise of adhoc/acting or look after charge since 02.03.2012 and was accorded its actualization on account of regular promotion order dated 17.08.2020 but the continuity of eight years' extensive period of service was neither reckoned nor taken into consideration. The respondent also pleaded before the FST, that the department has granted antedated promotion on acting charge basis in number of cases to the Railway Officers but he was not mete out with the

equal treatment rather he was discriminated without any reasonable or sensible cause. When all said and done, the FST wrapped up the service appeal with the directions to the department to pay the perks to respondent/appellant for holding the charge of higher position/office with effect from 02.03.2012 and place his name before the next DPC for consideration of his promotion with effect from the date of completion of 5 years' regular service in BS-17.

5. The raison d'être of electing an arrangement of ad-hoc employment and its continuity articulates a limited/short-term period as a stop-gap arrangement, intermittently the regular appointment or promotion as the case may be accomplished to fill a substantive post through the prescribed law and rules of recruitment. According to Section 2, definition clause (a) of Civil Servants Act, 1973, "ad-hoc appointment" means appointment of a duly qualified person made otherwise than in accordance with the prescribed method of recruitment, pending recruitment in accordance with such method". As long as the appointment of acting charge is concerned, it is unambiguously divulged under Rule 8-B of the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973, which accentuates that where the appointing authority considers it to be in the public interest to fill a post reserved under the rules for departmental promotion and the most senior civil servant belonging to the cadre or service concerned who is otherwise eligible for promotion does not possess the specified length of service, the authority may appoint him to that post on acting charge basis. However, in the pay scales 17 to 22, the acting charge may be vested where the appointing authority is satisfied that no suitable officer drawing pay in basic pay scale in which the post exists is available in that category to fill the post and it is expedient to fill the post, it may appoint to that post on acting charge basis the most senior officer otherwise eligible for promotion in the organization, cadre or service, as the case may be, in excess of the promotion quota.

6. The stopgap arrangement describes an arrangement of purely temporary, makeshift appointment intended to maintain official

business until a permanent or regular solution is found. It is primarily used as an interim measure to filling vacancy so that public services may not be disrupted. The stopgap arrangement includes the tenor of engagement as “ad-hoc”, “look-after charge” “current charge” and or “acting or additional charge”. Obviously neither do such engagements recognize as permanent or regular appointments within a cadre nor holding any such posts on stop-gap arrangement confers any right to a regular promotion as a vested right in that higher grade. In tandem, the stop-gap arrangements must not continue for an unlimited period. Prolonged ad-hoc, look-after charge, current charge and or acting or additional charge is indeed a form of exploitation which is not only egregious but terribly frustrates the spirit of service laws, therefore unlimited, unbounded or infinite period does not support the philosophy of turn of phrase “stopgap arrangement” which is not meant to keep the employees on the tenterhooks of uncertainty as a sword of Damocles. The State under the Constitution is duty-bound and indebted to warrant social and economic justice in order to ensure transparency and fairness in civil servant service structure as a grander fragment of good governance doctrine.

7. In the case in hand, the respondent continued to perform his duties in BS-18 from 02.03.2012 till his regular promotion with effect from 17.08.2020 on adhoc or look after basis which otherwise demonstrates that he was eligible to hold the post even though on adhoc or acting charge basis. Quite the reverse, retaining a person for such a long period under the contrive of adhoc/acting/look after charge signposts otherwise as if except the respondent, no other eligible person was available for appointment, or promotion on the said post for such a long period of eight years therefore, it was inevitable for the departmental authority to continue stopgap arrangement for an unlimited period of time that actually spoiled the basic theme and spirit of stopgap arrangement and remained inexplicable without any logical justification. If truth be told, in the administrative governance, a stop-gap arrangement is premeditated to address an interim or transitional

gateway envisioned to be applied until permanent successor is appointed or promoted but neither it can be construed as shield of protection against the mischief of departmental authority for noncompliance of their own rules of appointment, promotion and transfer and allowing or continuing stopgap arrangement indefinitely nor the eligible officers should be deprived for years of their regular promotions under the semblance of adhoc/acting or look after charge. Every employee has an inherent right to be considered for promotion based on merit and performance but based on unjustified glitches or procrastination on administrative sluggishness, the respondent was deprived.

8. The laws are made for man and man is not made for the laws. A wrong order and action cannot be perpetuated and it is the ultimate duty of the Court to remedy injustice. The statutory rules and regulations, while providing the disciplinary actions and punishments, also protects the service rights of employees and failure to follow such laws and rules amounts to an inherent illegality and infringement of employees' rights. According to Article 3 of the Constitution of Islamic Republic of Pakistan, the State has to ensure the elimination of all forms of exploitation and the gradual fulfilment of the fundamental principle, from each according to his ability to each according to his work. In our view, it is aimed to nip in the bud against oppressive or autocratic actions while ensuring evenhandedness with non-discriminatory treatment at grassroots level sanguine to the laws and procedures exist to serve the ends of justice rather than trapping the individuals under the garb of rigid technicalities. The doctrine of complete justice is a wide-ranging and all-inclusive expression aimed at doing justice at all costs so that the principles of fairness are not compromised or distorted on the basis of mere technicalities.

9. The mischief of departmental authority, administrative bodies, government departments and/or public officials as often as not insinuates as a misuse of power, procedural irregularities, or mala

fide conduct which includes the destabilization of laws and rules through administrative or directorial overreach and adventurism. The legal maxim "*A communi observentia non est recedendum*" denotes a legal principle that when the law specifies a particular way of doing something, it must be done in that manner. It is well-known code of behavior that no one should be prejudiced by the act of court which empathizes that for a complete sense of administration of justice, a patent and obvious error or oversight on the part of court should be rectified and no man should suffer by the fault of court. In our view this catchphrase must be applied to the administrative actions of administrative bodies equally while they perform their duties conferred to them under the law and rules and their decisions must be *jus naturale* and *quantum meruit* though in accordance with law and rules but without posing to be more knowledgeable or prudent than the laws and rules. The doctrine of reasonable period or reasonable time by and large deciphers that instead of permitting an indefinite postponement for complying with or fulfilling a duty, the act must be completed within a fair timeframe. Here also stopgap arrangement vis-à-vis an act of non-posting a person on substantive post either by way of appointment or promotion cannot be left unregulated but mindful to the doctrine of reasonable period, the task of appointment/promotion should have completed within a reasonable period of time which may be extended to three months to six months period in order to meet the exigencies. Following this timeline religiously will not become a cause of concern or grievance if any incumbent performing duties on higher post on ad-hoc/acting, look after or additional charge is not confirmed or actualized by the Departmental Promotion Committee or the Central Selection Board as the case may be then for sure, the stopgap arrangement will be over but in this case, the respondent was pendulous with undecided fate at least for eight years in the semblance of stopgap arrangement in violation of appointment, promotion and transfer rules.

10. In the case of Pakistan Railways through G.M., Lahore and another Vs Zafarullah, Assistant Electrical Engineer and others (1997 SCMR 1730), it was held that the appointments on current or acting charge basis are contemplated under the instructions as well as the Rules for a short duration as a stopgap arrangement in cases where the posts are to be filled by initial appointments. Therefore, continuance of such appointees for a number of years on current or acting charge basis is negation of the spirit of the instructions and the Rules and should not continue indefinitely. While in the case of Dr. Naveeda Tufail and 72 others Vs Government of Punjab and others (2003 SCMR 291) it was held that the concept of ad-hoc appointments against the posts in public sector is a stopgap arrangement which is not the permanent character of the civil service. It was observed by this Court in the case of Abdul Jabbar Memon (1996 SCMR 1349) that there can be no justification to keep the posts notionally vacant by making ad-hoc appointments and keep the ad-hoc employees hanging in the same situation for a number of years with the understanding of their adjustment on permanent basis and ultimately they are informed that they are no more required. This Court in the case of Secretary to Government of the Punjab, Communication and Works Department, Lahore and others Vs Muhammad Khalid Usmani and others (2016 SCMR 2125) noted with deep concern that the device of officiating promotion, ad-hoc promotion / appointment or temporary appointment etc. is used by Government Departments to keep civil servants under their influence which becomes the constant source of insecurity, uncertainty and anxiety for the concerned civil servants. Such practices must be seriously discouraged and stopped in the interest of transparency, certainty and predictability, which are hallmarks of a system of good governance.

11. In the case of Uzma Manzoor and others Vs Vice-Chancellor Khushal Khan Khattak University, Karak and others (2022 SCMR 694), (one of us) discussed the doctrine of legitimate expectation which is basically applied as a tool to watch over the

actions of administrative authorities and in essence imposes obligations on all public authorities to act fair and square in all matters encompassing legitimate expectation. In the case of Tariq Aziz-ud-Din and others (**2011 PLC (C.S.) 1130**), this Court held that all judicial, quasi-judicial and administrative authorities must exercise power in reasonable manner and also must ensure justice as per spirit of law and instruments regarding exercise of discretion. Obligation to act fairly on the part of administrative authority has been evolved to ensure rule of law and to prevent failure of justice. Object of good governance cannot be achieved by exercising discretionary powers unreasonably or arbitrarily and without application of mind. Such objective can be achieved by following rules of justness, fairness and openness in consonance with command of Constitution enshrined in different Articles including Articles 4 and 25 of the Constitution.

12. In the wake of the above discussion, we do not find any illegality, irregularity or perversity in the impugned judgment passed by the learned Tribunal. This Civil Petition is dismissed.

Judge

Judge

ISLAMABAD

28.01.2026

Khalid

Approved for reporting.